

PPRA, FERPA and COPPA Considerations Checklist for Hackles Research

The Hackles Kit

Trust your hackles. Pause · Check · Tell.

FIELD COPY

1



Lock It

PASSWORDS AND ACCOUNTS

2



Spot It

SCAMS AND FAKES

3



Share Smart

PRIVACY

4



Safe People

WHO TO TRUST

5



Kind and Well

KINDNESS AND BALANCE

6



Fix It

TELL, REPAIR, RECOVER

PLATE I. The six strands, hand-inked, in the order the lessons take them.

Hackles · a free kit · quillsup.org

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TO VERIFY

[COUNSEL TO CONFIRM] Everything in this checklist. It is a prompt for a conversation with district and institutional counsel and your IRB, not legal advice and not a compliance determination. Laws and agency guidance change. Items marked [VERIFIED 2026-10-05] were read in a primary source by the kit's checks on that date and still need a fresh look. Items marked [VERIFY] were not confirmed.

Hackles has not been evaluated in a controlled trial and has not been approved by any agency. The privacy-by-design option in this toolkit (aggregate teacher tallies, no student identifiers, no student free text) exists to keep the number of legal questions small.

No student accounts, no student data collected, ever.

01 The reported 2026 letter on parental consent for surveys (read this first)

What the kit reports. The Assessment Pack states that in its August 26, 2026 letter to states and districts, the US Department of Education said a survey on the eight protected areas given by a teacher, counselor or other school official is treated as **required**, so the school must let parents review it and get **written parental consent first; an opt-out is not enough**. The kit marked this "[VERIFIED 2026-10-05: studentprivacy.ed.gov, SPPO letter of Aug. 26, 2026; law.cornell.edu/uscode/text/20/1232h]".

How to treat it. Say it is **reported** and **must be verified**. Before you rely on it:

- ☐ Read the letter itself on studentprivacy.ed.gov, not a summary of it.
- ☐ Ask district counsel how the district interprets it and whether it applies to your survey, your setting (public school, charter, private school that takes federal funds [VERIFY]) and your state.
- ☐ Record the date you read it and the version you read.

What it means for the Hackles surveys. The Assessment Pack keeps its student surveys to knowledge, skills and confidence, and tells teachers not to add questions on the protected areas. If your study adds any item on a

protected area, written parental consent is the safe assumption [COUNSEL TO CONFIRM].

02 **PPRA (Protection of Pupil Rights Amendment), 20 U.S.C. 1232h**

[VERIFIED 2026-10-05 in the kit: law.cornell.edu/uscode/text/20/1232h and studentprivacy.ed.gov; confirm the current text.]

The protected areas (as listed in the statute; recheck the exact wording [VERIFY]): (1) political affiliations or beliefs of the student or parents; (2) mental or psychological problems of the student or family; (3) sex behavior or attitudes; (4) illegal, anti-social, self-incriminating or demeaning behavior; (5) critical appraisals of close family relationships; (6) legally recognized privileged relationships (lawyers, physicians, ministers); (7) religious practices, affiliations or beliefs; (8) income (other than as required by law to determine program eligibility).

#	CHECK	DONE
1	List every item in every survey. Does any item ask about a protected area, directly or by strong implication (for example, a student's own experience of being bullied or pressured, mood, or home life)?	☐
2	If yes: parental review and written consent before the survey, as counsel advises. If you cannot get it, remove the item	☐
3	If no: confirm with counsel that "knowledge, skills and confidence" items are outside the protected areas. Note that mental-health screeners fall in the protected area [VERIFIED 2026-10-05 in the kit]	☐
4	Parents' rights to inspect surveys and instructional materials: make the survey and the lesson plans available	☐
5	Rights pass to the student at 18 [VERIFIED 2026-10-05 in the kit]. Adjust consent for 18-year-old students	☐
6	Check how PPRA applies to research by outside researchers versus surveys by school staff, and to surveys funded by the Department [COUNSEL TO CONFIRM]	☐
7	Check state laws on student surveys and parental notice [VERIFY; the State Alignment Atlas is a starting point only]	☐
8	Open-ended items can elicit protected-area content even if you did not ask. Prefer closed items, or have the teacher (not the research team) read open responses the same day and follow the Disclosure Guide	☐
9	Do not add questions about a student's own experiences to the Hackles surveys. Do not use the Plus-lesson check-in items for research (they are unscored classroom items)	☐

03 **FERPA (Family Educational Rights and Privacy Act), 20 U.S.C. 1232g, 34 CFR Part 99**

[The school-official exception was VERIFIED 2026-10-05 in the kit: studentprivacy.ed.gov FAQ "Who is a school official under FERPA?" The rest is [VERIFY].]

#	CHECK	DONE
1	Is any data you receive "education records" or personally identifiable information (PII)? Class tallies of counts are aggregate; confirm with counsel that they are not PII, including for small classes	[]
2	Small cells: a class of 12 with one disability-related accommodation, or a subgroup under 10, can re-identify students. Suppress groups under 10 [VERIFY your district's rule]; avoid cross-tabs that identify individuals	[]
3	If you need student-level data: what FERPA pathway applies (written consent, directory information, the studies exception for organizations conducting studies for or on behalf of the school, or another)? [COUNSEL TO CONFIRM; 34 CFR 99.31(a)(6) is the studies exception as recalled: VERIFY the citation]	[]
4	If the school discloses data to the research team under an exception, is there a written agreement that limits use, forbids re-disclosure and requires destruction? [COUNSEL TO CONFIRM]	[]
5	School official exception for a vendor or contractor: institutional service the school would otherwise use employees for; under the school's direct control for use and maintenance of records; PII used only for the purpose of the disclosure; meets the school's legitimate-educational-interest criteria [VERIFIED 2026-10-05 in the kit]. Does it fit anything you plan?	[]
6	Where are the data stored? Is the storage approved by the school or institution?	[]
7	Does the district have its own research-approval process, data-sharing agreement or student-privacy pledge requirement? [VERIFY: state laws such as California SOPIPA, NY Education Law 2-d, and the Student Data Privacy Consortium agreement are named in the evidence file as examples to check]	[]
8	Teacher candidates in placements: keep student information at school; do not copy student work or take photos	[]
9	College students' own records are also covered by FERPA at the institution. Do not use course grades or records for research without a FERPA-compliant pathway and consent [COUNSEL TO CONFIRM]	[]

04 COPPA (Children's Online Privacy Protection Act), 16 CFR Part 312

[VERIFIED 2026-10-05 in the kit: FTC COPPA rule page and press release. The 2025 amendments were finalized Jan 16, 2025, published April 22, 2025, effective June 23, 2025, with a compliance deadline of April 22, 2026. The FTC did not finalize ed-tech or school-specific provisions. Confirm current text.]

COPPA applies to operators of online services directed to children under 13, or with actual knowledge that they collect personal information from children under 13. It requires notice, verifiable parental consent (with a limited school-authorization approach for educational use), data minimization, security and limits on retention. Biometric and government identifiers count as personal information under the amended rule.

#	CHECK	DONE
1	Do any surveys, forms or tools for the study collect personal information online from a child under 13 (names, emails, voice or video, persistent identifiers)? The privacy-by-design option says no: paper surveys, teacher tallies, no accounts	[]
2	If you use an online survey platform for adults only, confirm no child can reach it	[]
3	If you must use an online tool with students under 13, identify the operator's COPPA obligations and whether school authorization applies; get counsel's advice [COUNSEL TO CONFIRM]	[]

#	CHECK	DONE
4	Do not use a third-party tool that shares data for advertising, profiling or commercial purposes	☐
5	Check the operator's retention and deletion practices against the amended rule	☐
6	Do not collect biometric data (voice or face recordings) from children	☐

05 Other items to put in front of counsel

#	ITEM	DONE
1	Human subjects. The Common Rule (45 CFR 46) and the IRB's determination. Subpart D (children) and special rules for wards of the state [VERIFY]	☐
2	Mandated reporting. Researchers' duties; limits of confidentiality in consent forms; Certificate of Confidentiality limits [VERIFY]	☐
3	State student-privacy laws. Which apply; whether they limit research disclosures	☐
4	Recordings and consent. Audio or video recording laws in your state (one-party or all-party consent) for any adult interview recordings [VERIFY]	☐
5	Employment and union rules for research with teachers in a district	☐
6	Records retention under institutional and district policy	☐
7	Accessibility of survey materials for participants with disabilities [VERIFY the accessibility standard your institution has adopted]	☐
8	Intellectual property and the Publication, Authorship and Data Licence Policy	☐
9	TAKE IT DOWN Act and image content: research never involves viewing, copying or sharing suspected sexual images of minors; knowing possession is a serious crime with narrow defenses [VERIFIED 2026-10-05 in the kit: 18 U.S.C. 2252A; COUNSEL TO CONFIRM]	☐

06 A decision sequence

1. Is the activity **instruction or program evaluation done by the school as ordinary practice**, or **research** (systematic investigation meant to produce generalizable knowledge)? Ask the IRB. [IRB TO DETERMINE]
2. Does it touch **any protected area**? If yes, written parental consent and counsel before anything else. If no, record why.
3. Does the research team receive **any student-level data or PII**? If no (aggregate tallies only), record that and confirm small-cell suppression. If yes, identify the FERPA pathway and consent route.
4. Does anything collect **online personal information from a child under 13**? If yes, COPPA analysis. If no, record why.
5. Are **researchers mandated reporters**? Write the route and the consent language.
6. Are **adults** (candidates, teachers) participating? Independent recruiter, voluntariness, no grade link.

7. Write the data management plan and the limits statement.
8. Get written sign-off from the district or school administrator, counsel and the IRB.

07 What to write in your protocol

FIELD NOTE	No. 1
"Students will not be research participants. Teachers will give the Assessment Pack survey (knowledge, skills and confidence items only) as ordinary classroom practice, on paper, with a teacher-held matching code. Researchers will receive only class-level counts. No student names, codes, free text, photos or recordings will be collected. Groups under 10 will not be reported. The surveys contain no items on the protected areas of the PPRA. District counsel has reviewed [or: counsel review is pending] the application of PPRA and FERPA. [COUNSEL TO CONFIRM]"	

08 Keep this checklist alive

- Re-read the reported 2026 PPRA letter and any later guidance each term.
- Re-check state law and district policy each year.
- Record the dates you verified each item and who confirmed it.

This checklist is educational guidance, not legal advice. Consult district and institutional counsel and your IRB.